

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE ENROLLED ACT No. 88

AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

SECTION 1. IC 20-19-2-14.5, AS AMENDED BY P.L.93-2024, SECTION 138, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14.5. (a) As used in this section:

- (1) "college and career readiness educational standards" means Indiana standards that a high school graduate must meet to obtain the requisite knowledge and skill to transition without remediation to postsecondary education or training, and ultimately into a sustainable career; and
- (2) "cut scores" means the scores that define a student's performance on an assessment, including passing, failing, or falling into a performance category.

(b) The state board shall adopt Indiana college and career readiness educational standards. The educational standards must do the following:

- (1) Meet national and international benchmarks for college and career readiness standards and be aligned with postsecondary educational expectations.
- (2) Use the highest standards in the United States.
- (3) Comply with federal standards to receive a flexibility waiver under 20 U.S.C. 7861, as in effect on January 1, 2014.
- (4) Prepare Indiana students for college and career success, including the proper preparation for nationally recognized college

SEA 88 — Concur



entrance examinations such as the ACT, ~~and~~ SAT, or **Classic Learning Test**.

(5) Maintain Indiana sovereignty.

(6) Provide strict safeguards to protect the confidentiality of student data.

(c) The state, or the state board on behalf of the state, may not enter into or renew an agreement with any organization, entity, group, or consortium that requires the state to cede any measure of autonomy or control of education standards and assessments, including cut scores. The state board may not adopt Common Core (Common Core State Standards Initiative) or an assessment or test, except as provided in this subsection, that is produced solely by the United States government or a consortium of states. However, the state board is not prohibited from incorporating as part of Indiana's statewide assessments any assessment, part of an assessment, or series of questions if the assessment, part of an assessment, or series of questions is aligned to Indiana's academic standards.

(d) The state board may adopt rules under IC 4-22-2 to implement this section.

SECTION 2. IC 20-19-3-45 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 45. Not later than September 1, 2026, and not later than each September 1 thereafter, the department shall do the following:**

(1) Identify schools that allow students who are not enrolled in the school to take the following examinations at the school:

(A) Advanced placement exams.

(B) The PSAT/National Merit Scholarship Qualifying Test.

(C) The SAT.

(D) The ACT.

(E) The Classic Learning Test.

(F) The Armed Services Vocational Aptitude Battery.

(2) Present the data described in subdivision (1) in a manner that can be conveniently and easily accessed from the department's website to allow a student to determine available testing sites based on the student's geographic location.

SECTION 3. IC 20-30-4-2, AS AMENDED BY P.L.9-2021, SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 2. (a)** In consultation with the student's school counselor, after seeking consultation with each student's parents, and not later than the date on which the student completes grade 8, each



student shall develop a graduation plan that is a part of the student's permanent school record and accessible to a parent of the student in accordance with the Family Education Rights and Privacy Act (20 U.S.C. 1232g et seq.).

(b) The graduation plan developed under subsection (a) must include the following:

- (1) A statement of intent to graduate from high school.
- (2) An acknowledgment of the importance of:
 - (A) good citizenship;
 - (B) school attendance; and
 - (C) diligent study habits.
- (3) The subject and skill areas of interest to the student.
- (4) The postsecondary goals of the student aligned with the graduation pathway requirements under IC 20-32-4-1.5.
- (5) A program of study under the college/technology preparation curriculum adopted by the state board under IC 20-30-10-2 for grades 10, 11, and 12 that meets the interests, aptitude, and postsecondary goals of the student.
- (6) Assurances that, upon satisfactory fulfillment of the plan, the student:
 - (A) is entitled to graduate; and
 - (B) will have taken at least the minimum variety and number of courses necessary to gain admittance to a state educational institution.
- (7) An indication of assessments (other than the statewide assessment program and the graduation examination (before July 1, 2018)) that the student plans to take voluntarily during grade 10 through grade 12 and which may include any of the following:
 - (A) The SAT Reasoning Test.
 - (B) The ACT test.
 - (C) The Classic Learning Test.**
 - ~~(D)~~ **(D)** Advanced placement exams.
 - ~~(E)~~ **(E)** College readiness exams approved by the department.
 - ~~(F)~~ **(F)** Workforce readiness exams approved by the department of workforce development established under IC 22-4.1-2.
 - ~~(G)~~ **(G)** Cambridge International examinations.

SECTION 4. IC 20-30-5-6, AS AMENDED BY P.L.246-2005, SECTION 170, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 6. (a) This section applies only to public schools, **including charter schools.**

(b) As used in this section, "good citizenship instruction" means



integrating instruction into the current curriculum that stresses the nature and importance of the following:

- (1) Being honest and truthful.
- (2) Respecting authority.
- (3) Respecting the property of others.
- (4) Always doing the student's personal best.
- (5) Not stealing.
- (6) Possessing the skills (including methods of conflict resolution) necessary to live peaceably in society and not resorting to violence to settle disputes.
- (7) Taking personal responsibility for obligations to family and community.
- (8) Taking personal responsibility for earning a livelihood.
- (9) Treating others the way the student would want to be treated.
- (10) Respecting the national flag, the Constitution of the United States, and the Constitution of the State of Indiana.
- (11) Respecting the student's parents and home.
- (12) Respecting the student's self.
- (13) Respecting the rights of others to have their own views and religious beliefs.

(14) These research based actions that data indicates result in economic prosperity:

- (A) obtaining at least a high school diploma and acquiring additional training in preparation for the workforce;**
- (B) securing full-time employment; and**
- (C) waiting until marriage to begin having children.**

(c) The department shall:

- (1) identify; and
- (2) make available;

models of conflict resolution instruction to school corporations **and charter schools**. The instruction may consist of a teacher education program that applies the techniques to the students in the classroom to assist school corporations **and charter schools** in complying with this section.

SECTION 5. IC 20-32-5.1-7, AS AMENDED BY P.L.150-2024, SECTION 47, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) Except as otherwise provided in this section and in the manner provided in section 6 of this chapter, the state board is responsible for determining the appropriate subjects, grades, and format of the statewide assessment program.

(b) For each school year beginning after June 30, 2018, and except as provided in section 11 of this chapter, the statewide assessment



program must be administered to all full-time students attending a school corporation, charter school, state accredited nonpublic school, or eligible school (as defined in IC 20-51-1-4.7) in grades subject to the statewide summative assessment required by federal law and in a manner prescribed by the state board.

(c) Subject matter tested on by the statewide assessment program as determined by the state board under subsection (a) must, at a minimum, do the following:

- (1) Comply with requirements established under federal law with:
 - (A) math and English/language arts assessed yearly in grades 3 through 8, and at least once in grades 9 through 12; and
 - (B) science assessed at least once in grades 3 through 5, grades 6 through 9, and grades 10 through 12.

- (2) Require that United States history or United States government be assessed at least once in grades 5 or 8.

(d) Except as provided under subsection (e), for each school year beginning after June 30, 2021, a nationally recognized college entrance exam **such as the ACT, SAT, or Classic Learning Test** must be administered for the high school subjects required under subsection (c). The proficiency benchmark must be approved by the commission for higher education, in consultation with the state educational institutions, and may not be lower than the national college ready benchmark established for that particular exam.

(e) If the state board determines that no nationally recognized college entrance exam assesses a given high school subject that is required under subsection (c), the state board may select another type of assessment, including an end of course assessment, for that subject.

(f) The statewide assessment program:

- (1) may not use technology that may negatively influence the ability to measure a student's mastery of material or a particular academic standard being tested; and
- (2) may use a technology enhanced test question only when the technology enhanced test question is the best way to measure the academic standard being tested.

(g) A statewide summative assessment, other than an assessment administered under subsection (d), must use a scale score that will ensure the statewide summative assessment scores are comparable to scale scores used as part of the ISTEP program under IC 20-32-5, before its expiration.

SECTION 6. IC 21-40-4-8 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 8. With respect to admission criteria, a state**



educational institution shall accept the Classic Learning Test examination to the same extent the state educational institution accepts the ACT or SAT examination.



President of the Senate

President Pro Tempore

Speaker of the House of Representatives

Governor of the State of Indiana

Date: _____ Time: _____

SEA 88 — Concur

